

“The right to implied contractual indemnity is predicated upon the indemnitor’s breach of contract, ‘the rationale ... being that a contract under which the indemnitor undertook to do work or perform services necessarily implied an obligation to do the work involved in a proper manner and to discharge foreseeable damages resulting from improper performance absent any participation by the indemnitee in the wrongful act precluding recovery.’ [Citation.]” (*West v. Super. Ct.* (1994) 27 Cal.App.4th 1625, 1633.)

The Court is unable, however, to locate, in the FACC, any allegation of a contractual relationship between Cross-Complainants, or any of them, and Acme. Cross-Complainants contend, here, that they “allege[] the relationship between Cross-Complainants and Acme as manufacturer of the chassis for the Bronco (FACC ¶¶ 6, 12, 13) . . .” There is, however, *no relationship* between Cross-Complainants and Acme alleged at any of the cited paragraphs, let alone a contractual relationship.

Based on the foregoing, the Court finds that Cross-Complainants have failed to allege facts sufficient to state a claim for implied contractual indemnity.

Moreover, the Court finds that, while the FACC purports to state a claim for Declaratory Relief as a “Sixth Cause of Action,” that section of the FACC merely reasserts the allegations relating to Cross-Complainants’ purported implied indemnity cause of action. “A trial court may . . . dismiss a declaratory relief claim at the demurrer stage where it is “‘wholly derivative’” of other failed claims.” (*Siskiyou Hospital, Inc. v. Co. of Siskiyou* (2025) 109 Cal.App.5th 14, 53.)

Generally, it is an abuse of discretion for a court to deny leave to amend where there is any reasonable possibility that a Plaintiff can state a good cause of action. (*Goodman v. Kennedy* (1976) 18 Cal.3d 335, 349.) The Court finds, from the nature of the allegations in the FACC and the arguments made through the Opposition, a reasonable possibility that Cross-Complainants can amend to state a good cause of action.

Based on the foregoing, the demurrer is SUSTAINED WITH LEAVE TO AMEND.

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Regina Dal Poggetto v. Richard P. Solis

25CV002373

DEFENDANT RICHARD PAUL SOLIS’S MOTION TO DISMISS FOR LACK OF SUBJECT MATTER JURISDICTION

TENTATIVE RULING: The matter is CONTINUED to October 15, 2026, at 8:30 a.m. in Dept. B.

“The court lacks jurisdiction to rule on a motion that has not been properly noticed for hearing on the date in question.” (*Diaz v. Prof. Community Management, Inc.* (2017) 16 Cal.App.5th 1190, 1204-05.) The Proof of Service indicates that the moving papers and notice of hearing were served on Plaintiff, by mail, on August 20, 2026. Thus, Defendant failed to provide adequate notice of the hearing date. (See Code Civ. Proc. §§1005, subd. (b) [“all moving

and supporting papers shall be served and filed at least 16 court days before the hearing . . . [and] . . . if the notice is served by mail, the required 16-day period of notice before the hearing shall be increased by five calendar days if the place of mailing and the place of address are within the State of California”].)

The moving party also failed to include in the notice of this motion proper notice of the Court’s tentative ruling system as required by Local Rule 2.9. Moving party is directed to immediately provide, by telephone call AND email, the missing notice to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

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Bayli Beardsley v. Chipotle Mexican Grill, Inc. et al

26CV000153

MOTION TO DISMISS ACTION FOR DELAY IN PROSECUTION

TENTATIVE RULING: The motion is DENIED IN PART and GRANTED IN PART. The motion for an order to show cause (“OSC”) why the action should not be dismissed is DENIED. The alternate motion for an OSC why sanctions should not be imposed is GRANTED.

The matter is set for an OSC Re: Monetary Sanctions for Failure to Comply with CRC 3.110(b) on October 2, 2026 at 8:30 a.m. in Dept. B, to coincide with the Case Management Conference. Responsive papers must be filed and served at least 5 calendar days before the hearing. (See Rules of Court, rule 3.110(i).)¹ Plaintiff’s responsive papers should, at minimum, address (1) the factors for extension of time to serve a summons and complaint under rule 3.110(e) and (2) the amount of monetary sanctions requested by Defendant Napa Crossing East II, LLC (“Defendant”) as further discussed below. Defendant is invited to serve and file a reply to Plaintiff’s responsive papers. If Defendant elects to do so, the reply must be served and filed no later than 3 calendar days before the hearing.

Defendant is directed to immediately provide Notice of Entry of this Order to all parties.

A. PROCEDURAL MATTERS

Defendant moves, pursuant to rule 3.110(b), for an OSC why the action should not be dismissed and/or why sanctions should not be imposed, and for such other relief as the Court deems just. The motion is made on the grounds that Plaintiff failed to serve the Summons and Complaint on Defendant within 60 days after the Complaint was filed and did not effect service until 164 days after filing—without leave of Court, stipulation, or any application for an order extending time—and without any reasonable excuse for the delay, to Defendant’s prejudice.

¹ All subsequent references to “rule” are to the Rules of Court unless otherwise specified.